

Court No. - 3

Case :- WRIT - C No. - 26571 of 2021

Petitioner :- Anoop Kumar And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mahendra Nath Pandey

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

1. Learned counsel for the petitioner relies on specific pleading made in paragraph 17 of the writ petition, that before raising the demand, no proceeding was conducted against the petitioner.

2. Learned counsel for the respondent distribution company prays for and is granted five days' time to obtain instructions in this regard.

3. Put up **as fresh** on 29.10.2021.

Order Date :- 22.10.2021

AHA

Court No. - 21

Case :- WRIT - C No. - 26571 of 2021

Petitioner :- Anoop Kumar And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mahendra Nath Pandey

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasisa

Hon'ble Naheed Ara Moonis,J.

Hon'ble Saumitra Dayal Singh,J.

Learned counsel for the respondent prays for and is granted five days time to complete instructions.

Put up as fresh on 17.11.2021.

Order Date :- 10.11.2021

Saurabh

Court No. - 21

Case :- WRIT - C No. - 26571 of 2021

Petitioner :- Anoop Kumar And Another

Respondent :- State Of U.P. And 5 Others

Counsel for Petitioner :- Mahendra Nath Pandey

Counsel for Respondent :- C.S.C., Madan Mohan Chaurasia

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Heard Shri M.N. Pandey, learned counsel for the petitioners and Shri Madan Mohan Chaurasia, learned counsel for the Distribution Corporation.

Challenge has been raised against the petitioner to the recovery issued towards electricity dues.

Learned counsel for the Distribution Corporation has produced written instructions today. The same has been marked as 'X' and placed on record. It thus transpires at present, the petitioner is visited with recovery of Rs. 1,60,681/- under a provisional order dated 22.11.2019 with respect to checking report dated 28.09.2019 for Rs. 1,60,681/- and a provisional assessment order dated 31.12.2020 with respect to another checking report dated 19.11.2020 for Rs. 1,28,539/-.

From instructions thus received, it is not established that the aforesaid provisional assessment orders were served upon the petitioner. Neither the endorsement of dispatch made nor the details thereof are mentioned in the document produced along with the written instructions, nor have such details been disclosed otherwise.

Under Section 126 of the Electricity Act, 2003 read with the U.P. Electricity Supply Code, 2005, it is mandatory on part of the Distribution Corporation to serve a provisional demand on the consumer as may allow him an opportunity to file objection thereto. If such objection is filed within time, the Distribution Corporation would remain obligated to first adjudicate the same before seeking recovery of its demand. Only in terms of the decision that may be reached upon the objections filed, recoveries may arise.

In the facts of the present case as noted above, since the date of service of the provisional demand is not established, we do not see how the recoveries have arisen against the petitioner, prematurely.

In such facts, no useful purpose would be served in keeping the petition pending or calling for a counter affidavit, in view of the order proposed to be passed.

Accordingly, the writ petition is ***disposed of*** with the following directions:

(i) the petitioner may file a copy of this order before the respondent no. 5 within a period of two weeks from today. Thereupon, respondent no. 5 shall make available to the petitioner all adverse material that is being relied in support of the recovery citations dated 26.08.2021 and 28.08.2021 (annexed as Annexure No. 3 to the petition);

(ii) upon being thus confronted with the adverse material, the petitioner shall have a right to file a detailed objection within a further period of two weeks therefrom annexing therewith all material as the petitioner may seek to rely on;

(iii) upon receipt of such objection, the said respondent no. 5 shall fix a date for hearing in the matter within a period of two weeks therefrom and pass appropriate and reasoned order, strictly in accordance with law, after hearing the parties within a period of one month therefrom.

For a period of three months from today or till disposal of the aforesaid objection, whichever is earlier, no coercive measure shall be adopted against the petitioner, subject to his complying with the terms of this order.

All further recovery shall abide by the decision to be made by the respondent no.5.

Order Date :- 17.11.2021

Saurabh